

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
DEASIA BLAND, ARCHIE CAMPBELL, and
SEADERA WILSON,

Plaintiffs,

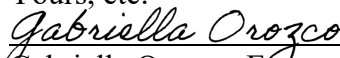
-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE PAUL MASTRONARDI, Tax ID No.
955147, and NYPD POLICE OFFICERS JOHN AND
JANE DOES NUMBERS 1-10,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Queens
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 3, 2022Yours, etc.


Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE PAUL MASTRONARDI, Tax ID No. 955147, NYPD

Vice Enforcement Division Zone 2, 112th Precinct; 68-40 Austin Street, Queens, NY
11375

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
DEASIA BLAND, ARCHIE CAMPBELL, and
SEADERA WILSON,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE PAUL MASTRONARDI, Tax ID No.
955147, and NYPD POLICE OFFICERS JOHN AND JANE
DOES NUMBERS 1-10,

Defendants.

----- X
Plaintiffs, DEASIA BLAND, ARCHIE CAMPBELL, and SEADERA WILSON, by their
attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein, allege upon
information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 29, 2021, at approximately 4:00 p.m., Plaintiffs DEASIA BLAND, ARCHIE CAMPBELL, and SEADERA WILSON, while lawfully in the vicinity of 9738 72nd Drive, County of Queens, New York, was subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiffs were subjected to assault and battery, and thereafter spent approximately twelve (12) hours in unlawful custody by defendant officers at the 43rd Precinct before they were released from custody with Desk Appearance Tickets. The Criminal Possession charges falsely made against Plaintiffs WILSON and BLAND were dismissed and sealed on or around May 17, 2022; the Queens County District Attorney declined to prosecute Plaintiff CAMPBELL as he committed no crime. Plaintiffs were deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, assaulted, battered, and passed along false accusations to prosecuting attorneys against the Plaintiffs, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DEASIA BLAND is a resident of the state of New York.
3. Plaintiff ARCHIE CAMPBELL is a resident of the state of Pennsylvania.
4. Plaintiff SEADERA WILSON is a resident of the state of Massachusetts.
5. New York City Police Detective Paul Mastronardi, Tax ID No. 955147, is and was at all times relevant herein an Officer with the New York City Police Department.
6. Currently and at all times relevant herein, New York City Police Detective Paul Mastronardi, Tax ID No. 955147, was assigned to Vice Enforcement Division Zone 2 of the NYPD.
7. New York City Police Detective Paul Mastronardi, Tax ID No. 955147, is being sued in his individual and official capacity.
8. New York City Police Officers John and Jane Does Numbers 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. New York City Police Officers John and Jane Does Numbers 1-10 are being sued in their individual and official capacities.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on or around March 4, 2022.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 29, 2021, at approximately 4:00 p.m., Plaintiffs BLAND, CAMPBELL, and WILSON were lawfully present in the vicinity of 9738 72nd Drive in Queens, New York, when the defendant Police Officers unlawfully arrested Plaintiffs without probable cause or legal justification.

18. At the time of the relevant incident, Plaintiffs BLAND and WILSON were living at the aforementioned location, and Plaintiff CAMPBELL was there visiting his friends.

19. Plaintiffs BLAND and CAMPBELL were in the living area of the apartment and Plaintiff WILSON was sleeping in her room when Defendant Police Officers burst into the apartment, with guns directly pointed at Plaintiff CAMPBELL's head.

20. Plaintiff WILSON heard the commotion and came out of her room,

21. Fearful, and without realizing the intruders were police officers, she fearfully ran into the bathroom.

22. Defendant officers burst into the bathroom, threw Plaintiff WILSON onto the floor, and began repeatedly punching and kicking her.

23. Defendant officers then dragged Plaintiff WILSON out of the bathroom.

24. The defendant officers unlawfully searched, handcuffed and arrested the Plaintiffs.

25. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

26. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs' possession, custody, or control.

27. Plaintiffs did not resist arrest.

28. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by the defendant officers without probable cause or legal justification, and placed in the back of an NYPD van where they waited as defendant officers searched the home.

29. Plaintiffs were then transported against their will to the 112th Precinct, where they were fingerprinted, photographed, and unlawfully placed in a holding cell.

30. While Plaintiffs were in custody, the defendant police officers provided the Queens County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime; specifically, Criminal Possession of a Controlled Substance.

31. After approximately twelve (12) hours in custody at the 112th Precinct, Plaintiffs BLAND and WILSON were released with Desk Appearance Tickets; the Queens County District Attorney declined to prosecute Plaintiff CAMPBELL as he committed no crime, and he was released from custody at the 112th Precinct with no charges.

32. At their arraignment on November 18, 2021, Plaintiffs BLAND and WILSON were given Adjournments in Contemplation of Dismissal, and all charges against them were dismissed and sealed on or around May 17, 2021.

33. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiffs.

34. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiffs to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

35. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

36. Defendants owed a duty of care to Plaintiffs.

37. To the extent defendants claim that the injuries to Plaintiffs by the defendant police officers were unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by, among other things, forcibly dragging them from their home and restraining them with tight metal handcuffs.

38. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

39. All of the foregoing occurred without any fault or provocation by Plaintiffs.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

42. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION **Unlawful Stop, Question, and Search**

43. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

44. The illegal approach, pursuit, stop, and grab employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

45. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

46. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:**

Unlawful Seizure and Deprivation of Liberty

49. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

50. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' rights to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

52. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights: Excessive Force

58. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

59. The use of excessive force by defendants by, amongst other things, seizing, tackling, punching, kicking, and handcuffing the plaintiffs, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Assault

61. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

62. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

63. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

67. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

68. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiff WILSON when they, in a hostile and/or offensive manner, tackled, punched, and kicked the plaintiff, brutally effecting an arrest of Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

73. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs.

75. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

76. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

80. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

81. The City of New York and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

82. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

83. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

84. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, Plaintiffs suffered serious, debilitating, and permanent emotional and psychological injury, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

87. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

91. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

92. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

93. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

94. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

95. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional rights to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

96. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional, physical, and psychological injuries.

TWELFTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

100. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

101. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

102. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

103. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately twelve (12) hours in total.

104. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured psychological and emotional injuries and were otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

105. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

106. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

107. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

108. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' AC 8-802 rights against unreasonable search and seizure

and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

109. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

110. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured psychological and emotional injuries and were otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

126. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

130. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately twelve (12) hours in total.

132. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured psychological and emotional injuries and were otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

133. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

137. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs’ AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical, psychological, and emotional injuries and were otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

111. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

112. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;

- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

113. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, psychological, economic, and emotional injuries, as well as a deprivation of liberty.

114. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, psychological, economic, and emotional injuries, as well as a deprivation of liberty.

115. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

116. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs, DEASIA BLAND, ARCHIE CAMPBELL, and SEADERA WILSON, demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
November 3, 2022

By: Gabriella Orozco
Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor

New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE PAUL MASTRONARDI, Tax ID No. 955147, NYPD
Vice Enforcement Division Zone 2, 112th Precinct; 68-40 Austin Street, Queens, NY
11375

ATTORNEY'S VERIFICATION

GABRIELLA OROZCO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
November 3, 2022

Gabriella Orozco
GABRIELLA OROZCO, ESQ.